

26STCV09457 26STCV09457

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 26STCV09457 Hearing Date: September 17, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

luminosity entertainment, et al.,

Plaintiffs,

vs.

DAVID M. ALMARAZ, et al.,

Defendants.

Case No.:

26STCV09457

Hearing Date:

September 17, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT GRANT

SHENON ALMARAZ, A PROFESSIONAL LAW CORPORATION'S MOTION FOR LEAVE TO FILE
COMPULSORY CROSS-COMPLAINT

Background

Plaintiffs Luminosity Entertainment

LLC, MMJ Productions LLC, Elie K. Samaha, and Peter M. Hoffman (Plaintiffs) filed this legal malpractice action on March 24, 2026 against defendants David M. Almaraz and Grant Shenon Almaraz (Defendants). Defendants answered on May 12, 2026, correcting the identity of defendant Grant Shenon Almaraz to "Grant Shenon Almaraz, a Professional Law Corporation" (Almaraz PLC). A trial date has not been set.

On June 18, 2026, Almaraz PLC filed the instant motion for leave to file a compulsory cross-complaint for unpaid attorneys' fees against Plaintiffs and new cross-defendants Geno Taylor, and individual, and GVN Releasing LLC (together "Cross-Defendants").

Almaraz PLC served its motion on Plaintiffs' counsel by electronic mail on June 18, 2026. Plaintiffs filed no opposition.

Legal Standard

A defendant against whom a complaint has been filed may file a cross-complaint setting forth "Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." ((Code Civ. Proc., § 428.10, subd. (b).)

"A party

shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer

to the complaint or cross-complaint.” (Id., § 428.50(a).) “Any other cross-complaint may be filed at any time before the court has set a date for trial.” (Id., subd. (b).) If the defendant fails to file the cross-complaint within this timeframe, he must obtain leave of court. (Id., subd. (c).) The court may grant leave “in the interest of justice at any time during the course of the action.” (Ibid.)

In other words, the Court may grant a motion for leave to belatedly file a cross-complaint if it finds the causes of action in the cross-complaint arise from the same transaction or occurrence as the causes of action in the complaint, and that doing so would be in the interests of justice. “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” ((Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.))

Discussion

The unopposed motion is granted. The causes of action in the proposed cross-complaint arise from the same transaction or occurrence as the causes of action in the complaint. This case is less than six months old and no trial date has been set. Plaintiffs filed no opposition demonstrating cognizable prejudice.

Conclusion

Defendant Grant Shenon Almaraz, a Professional Law Corporation’s Motion for Leave to File Compulsory Cross-Complaint is GRANTED.

Moving Defendant is ordered to provide notice of this Order and separately file its proposed cross-complaint within 10 days of this Order.

DATED: September 17, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior

Court